

24VECV03879 24VECV03879

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-02

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Case Number: 24VECV03879 Hearing Date: July 2, 2026 Dept: T

24VECV03879 Arakelian v BMW

TENTATIVE RULINGS

Motion to Vacate:

The court agrees to amend the judgment for clarity as follows:

"After the court's granting of a motion for non-suit by the defendant, Judgment is entered in favor of defendant BMW of North America, LLC and against plaintiff Alen Arakelian. Plaintiff is to take nothing on his complaint. Defendant is the prevailing party. Attorney fees, if allowed by Code or contract, to defendant by noticed motion. Costs per Memorandum of Costs to defendant."

The judgment is nothing more than a summary of in whose favor the case has been decided and who the prevailing party is. Anything else is preserved by the record including any of plaintiff's arguments and objections concerning the motion for non-suit; these are preserved by the transcript of the proceedings. It is unnecessary to include the legal reasons in the judgment. CCP section 577 states: "A judgment is the final determination of the rights of the parties in an action or proceeding." It is not a legal treatise on why judgment was entered.

If there is concern that plaintiff's objections to the proposed judgment are not a matter of record, they are clearly stated and preserved in this motion.

On the Motion to Tax Costs, the court grants the motion because the Memorandum of Costs did not accurately identify the costs. Lumping all recoverable costs under "Other" was insufficient to properly claim costs. Indeed, defendant never submitted a proper costs memo breaking out the expenses in the form. While it is not necessary to attach receipts and invoices, at a minimum each of the expenses should have been designated in the proper category on the cost memo. It was not until the opposition to the motion that a breakdown under the proper categories was made but only in narrative form as opposed to a cost memo, which was too late. Only the filing fees is allowed. The remainder of the costs under "Other" are disallowed.